

9	Ravera – Conservatorship; 30-2020-01139584	
10	Iribarne – Other; 30-2025-01537079	Demurrer Respondent Carmencita Jimenez Iribarne’s Demurrer to Garbriel A. Iribarne’s Petition for Order for Recovery of Property and Imposition of Constructive Trust Under Probate Code § 850 (ROA 28) is OVERRULED. On December 31, 2025, Petitioner Gariel A. Iribarne, co-administrator of the Estate of Ricardo Raul Iribarne (Decedent), filed a petition regarding certain real property and other assets alleged to be part of the estate. The petition seeks recovery of the alleged estate assets under Probate Code § 850 or, in the alternative, imposition of a constructive trust. Respondent demurs to the petition on the ground that the real property addressed in the petition was held in joint tenancy by Decedent and Respondent and the joint tenancy was never severed, so the petition’s claim to the real property must fail. As an initial matter, the court exercises its discretion to consider Petitioner’s untimely opposition. Because Respondent filed a substantive reply to the opposition, the court finds no prejudice from the defects and deems any objection thereto waived. (<i>Felisilda v. FCA US LLC</i> (2020) 53 Cal.App.5th 486, 492–493; Cal. Rules of Court, rule 3.1300(d).) The petition claims estate ownership of property beyond just the real property addressed in the demurrer. (Petition [ROA 1] at ¶¶ 2, 3, 119 and Prayer at 34:25-35:4.) “Ordinarily, a general demurrer does not lie as to a portion of a cause of action, and if any part of a cause of action is properly pleaded, the demurrer will be overruled.” (<i>Spencer v. City of Palos Verdes Estates</i> (2023) 88 Cal.App.5th 849, 861; see <i>Southern California Pizza Co., LLC v. Certain Underwriters at Lloyd’s, London</i> (2019) 40 Cal.App.5th 140, 154 [“[a] demurrer must dispose of an entire cause of action to be sustained”]; and Code Civ. Proc., § 430.50(a) [“A demurrer to a complaint . . . may be